

AGENT AFFILIATION AND COMPENSATION ELECTION

Homix Living Inc. | Compensation Policy v3.1 | New York

This Compensation Election is incorporated into the accompanying Independent Contractor Agreement and replaces any earlier commission-plan page in the enrollment package. Portal-populated values are read-only. The executed agreement, approved team terms, transaction facts, brokerage policy, and applicable law control.

Agent legal name	[agent_name]	Portal agent ID	[agent_id]
Agent email	[agent_email]	Agent phone	[agent_phone]
License number	[license_number]	Licensed company	[licensed_company]
Selected plan	[compensation_plan]	Agent-side split	[split_pct]%
Sponsor	[sponsor_name]	Affiliation term	[affiliation_term_months] months

1. AVAILABLE COMPENSATION PLANS

SOLO	SOLO PRO	TEAM MEMBER
85% Agent / 15% Homix before the annual Homix cap. Affiliation fee: \$288 for 12 months or \$500 prepaid for 24 months. Annual Homix Company Dollar Cap: \$12,000. After the cap, the percentage split stops for the balance of the anniversary year and the Transaction Fee schedule begins on the next closing.	100% commission mode from the first closing. Annual fee: \$3,650, including the base affiliation fee. No percentage split or split cap. The Transaction Fee schedule applies from the first closing. The Solo Pro term is 12 months.	90% Agent Side / 10% Homix before the annual Homix cap. Affiliation fee: \$288 for 12 months or \$500 prepaid for 24 months. Annual Homix Company Dollar Cap: \$10,000. Approved Team Split and Team Cap terms apply separately to the Agent Side and continue after the Homix cap unless the signed Team Agreement states otherwise.

Non-Producing status. An approved agent who is not currently producing remains on the Solo affiliation plan. Non-Producing is a business status, not a separate compensation plan. Permitted activity remains subject to the Agreement, brokerage policy, licensing requirements, and New York law.

2. CALCULATION ORDER AND TRANSACTION FEES

Each closing is calculated in this order: Gross Commission; applicable outside referral or Homix source economics; Homix Company Dollar or the 100% mode Transaction Fee; approved Team Economics when applicable; agent-funded rebate or an approved rebate program; and final settlement. A closing that creates normal Homix Company Dollar is not also charged a Transaction Fee.

Commission check received by Homix	Transaction Fee in 100% mode
Up to \$30,000	\$200
\$30,000.01 to \$100,000	\$500
Over \$100,000	\$1,000

3. SOURCE ECONOMICS

Self-generated business has no source fee. A Homix Rental Lead is subject to a 15% Homix Lead Fee and a Homix Sales Lead is subject to a 25% Homix Lead Fee, each taken before the selected plan economics. An outside referral is paid according to the signed referral agreement before plan economics. A team-generated lead follows the signed Team Agreement and is not automatically a Homix lead.

4. TEAM TERMS - COMPLETED ONLY FOR TEAM MEMBER

Team name	[team_name]	Standard Team Split	[team_split_pct]% of Agent Side
Team-sourced Split	[team_sourced_split_pct]% of Agent Side	Annual Team Cap	[team_cap_usd]
Team terms effective	[team_terms_effective_from]		

Company Dollar is calculated before Team Economics. The Team Split is calculated from the Agent Side after Homix Company Dollar. The Homix Company Cap and Team Cap are separate ledgers. The Team terms shown above are the approved, versioned terms locked by Portal for this enrollment; they may not be changed in the signing session.

5. SPONSOR AND PROGRAM DISCLOSURES

Sponsor and Team Leader are separate roles, although one person may serve as both. A Sponsor reward, when qualified, is paid from eligible Homix-owned revenue and does not reduce the introduced agent's commission or cap credit. Transaction fees, outside referral pass-throughs, client rebates or credits, and third-party charges are excluded. Sponsor eligibility and any continued reward remain subject to the signed sponsor program, annual qualification, active status, good standing, and program availability; no reward, lead, closing, or earnings level is guaranteed.

6. FEES, TERM, AND PLAN CHANGES

Affiliation and annual fees are due through Portal when this Agreement is signed or renewed, unless the Company records verified offline payment. Fees are non-refundable except where required by law. A 24-month Solo or Team Member election is prepaid. A Solo Pro upgrade within 90 days after an eligible \$288 or \$500 payment may receive a credit equal to that payment; after 90 days no credit applies. The upgrade begins a new 12-month Solo Pro term. There is no cash refund or monthly proration. Plan changes and team changes are prospective and require Company approval, updated Portal records, and any required new agreement or addendum.

7. ACKNOWLEDGMENT AND COUNTERSIGNATURE

The Agent confirms that the selected plan, term, company, sponsor, and any Team terms above were disclosed before signing; that no oral statement changes these written terms; and that this election is subject to the accompanying Independent Contractor Agreement. The Company countersigns only after administrator compliance review. This Compensation Election becomes effective only when all required signatures are complete and the Company approves affiliation.

AGENT / TEAM LEADER SIGNATURE	COMPANY COUNTERSIGNATURE
Signature: _____	Signature: _____
Printed name: _____	Si Zhang, Broker
Date: _____	Date: _____

Company countersigner: Si Zhang, Broker | sunnyz@homixny.com | Homix Living Inc.

REALTOR® APPLICATION

THE LONG ISLAND BOARD OF REALTORS®, Inc.

1305 Walt Whitman Road Suite 310 Melville, NY 11747
(631) 661-4800 (718) 739-8700 FAX: (631) 661-8136
Email – LIBORMEM@LIREALTOR.COM

FOR OFFICE USE ONLY:

MEMBER # _____ FIRM # _____

PAYMENT INFO _____

I hereby apply for REALTOR® Membership in the Long Island Board of REALTORS®, Inc. (LIBOR). It is understood that this application includes membership in the New York State Association of REALTORS® (NYSAR) and the National Association of REALTORS® (NAR). I agree that, if elected a member of LIBOR, I will abide by the By-Laws, policies and procedures of LIBOR, the By-Laws of NYSAR, the Constitution and By-Laws of NAR, and I will abide by the Code of Ethics of NAR, as from time to time amended.

Upon termination of said membership for any cause, I understand that any payment of dues is **non-refundable** and I agree to discontinue the use of the term REALTOR® and return to LIBOR all certificates, signs, seals, or other indications of membership in LIBOR, NYSAR, and NAR.

To attain full REALTOR® membership, you must complete (1) LIBOR's New Member Orientation (NMO) program, and (2) NAR's Fairhaven Simulation within ninety (90) days of joining LIBOR. Failure to complete the NMO and Fairhaven Simulation within the required time period would result in losing your REALTOR® status and suspension of all LIBOR services, discounts, and benefits. The NMO program satisfies the NAR requirement for ethics training and includes an introduction to membership. Your membership will be considered Provisional until NMO and Fairhaven Simulation are completed. NMO can be satisfied through instruction provided by LIBOR at a free in-person course, a live webinar via Zoom at no cost, or a self-guided online course for an additional fee. NAR's Fairhaven Simulation can be taken at no cost at <https://www.nar.realtor/fair-housing/fairhaven>.

PLEASE PRINT (all fields are required)

Name (as shown on license) Last, First, M.I. _____ Office Name: _____

Office Address: _____ Town: _____ State: _____ Zip: _____

Office Phone: () _____ Fax# () _____ E-Mail Address: _____

Web Address: _____ Date of Birth : _____ Preferred Mailing Address: ☐ Home ☐ Office

Residence Address: _____ Town: _____ State: _____ Zip: _____

Home Phone: () _____ Cell Phone: () _____ Preferred Phone: ☐ Home ☐ Office ☐ Cell

Primary Field of Business: _____ Secondary Field of Business: _____

Do you conduct commercial real estate transactions? ☐ Yes ☐ No

Are you now, or have you ever been a member of another REALTOR® board? ☐ Yes ☐ No

If yes, specify name of board _____ NRDS # _____

LIBOR is committed to keep you up-to-date on critical real estate news, legal and licensing updates that are important to your business, members-only educational opportunities, calls to action, networking opportunities, and more. Stay in the know by checking the "Yes" boxes below!

☐ **YES** ☐ **NO** I consent (or "opt-in") to receive occasional automated text messages with pertinent information from LIBOR at my indicated cell phone number. Opting-in to receive automated text messages is not a requirement of membership. Message and data rates may apply. Check with your wireless carrier regarding pricing. You may opt-out of receiving LIBOR text messages at any time by following the instructions in the message, by contacting Membership Services at 1-631-661-4800 or emailing libormem@lirealtor.com.

☐ **YES** ☐ **NO** I consent that LIBOR may contact me by facsimile machine (fax), telephone, and/or email address at the fax, telephone or email address set forth above for informational and marketing purposes. You may opt-out of receiving such fax and e-mail messages at any time by following the instructions accompanying the message, by contacting Membership Services at 631-661-4800 or emailing us at libormem@lirealtor.com. This consent applies to changes in contact information that may be provided by me to LIBOR in the future.

X _____
APPLICANT SIGNATURE (Salesperson/Associate Broker)

DATE



Commission Reporting Guideline Acknowledgement

Licensed sales person shall report his/her full commission amount together with the fully executed lease and / or sales contracts to the brokerage within 3 business days from the date of the closing. Homix Living Inc reserves the right to terminate any sales person's licensing sponsorship and report to DOS in the event of a breach of this guideline.

Licensed Sales Person:

Homix Living Inc:

(Print Name)

(Signature)

(Signature)

(Date)

(Date)



INDEPENDENT CONTRACTOR AGREEMENT

Agent name:

Agent Social Security Number:

Agent Address:

Agent License Number /UID:

Brokerage Name: Homix Living Inc.

Brokerage Address: 110 Charlton St #A, New York, NY 10014

Agreement Date/ Effective Date:

I. Engagement

This Agreement is entered into on the date shown above between the Agent and Brokerage identified above. Subject to the terms and conditions of this Agreement, Brokerage engages Agent as an independent contractor to assist clients with the purchase, sale and rental/ lease of real estate. Agent accepts the engagement and agrees to provide the services of a real estate agent (a salesperson or associate broker) to clients in the manner and subject to the conditions this Agreement provides. Salesperson will be an independent contractor and shall not be treated as an employee with respect to the services performed by salesperson as a real estate agent for federal tax purposes.

II. General

A. Agent understands that he or she is entering into this Agreement as an independent contractor and not as an employee. Brokerage will have no responsibility to withhold or pay any income or other taxes on Agent's compensation or to provide any insurance, retirement or other employee benefits to Agent. Agent's independent contractor status will define the parties' relationship despite any contrary designation that may appear on the Agent's real estate License

B. Agent will be free to determine his or her own business hours and to choose his or her own target clients, marketing techniques and sales methods. However, Agent agrees to conduct business in compliance with the standards of conduct prescribed by the Brokerage, comply with any and all applicable local, state and federal laws that govern real estate brokerages; and with any bylaws and codes of ethics of each trade or professional organization of which Agent or Brokerage is a member. Without limiting the generality of these commitments, Agent agrees:

1) to comply with all Laws and all Policies and Guidelines that apply to the dissemination of unsolicited e-mail ("spam") and faxes and to the use of telephone calls to market Agent's services or to solicit listings or prospective buyers;

2) to adhere to and comply with the Privacy Policy that HOMIX publishes and amends from time to time on its website and other company materials; and

3) to adhere to and comply with HOMIX's guidelines and restrictions that apply (i) to the registration, ownership and use of domain names for websites that display the HOMIX trademarks or logo, (ii) to the display and use of the HOMIX name, trademarks and logo on the Internet, and (iii) to the use of metatags and other devices that attract Internet search engines to such websites.

4) to, at all times maintain current/active membership in the Long Island Board of Realtors; all costs related thereto being born by Agent. In the event Agent failed to renew membership with Long Island Board of Realtors, Brokerage shall have the right to renew and pay for Agent's renewal fee and deduct the net cost from Agent's commission.

C. During the entire time that Agent remains with the Brokerage, Agent agrees to list all real estate listings that Agent obtains and to handle all real estate transactions in which Agent engages in the name of Homix Realty Inc.

D. Agent agrees not to do anything by action, conduct, statement or association that might damage or be detrimental to the goodwill associated with HOMIX's name, trademarks or reputation or cause the public to lose confidence in HOMIX.

E. Agent will have no authority to incur obligations on Brokerage's behalf and promises (1) not to sign any contract, agreement, lease or note in the name of Brokerage, (2) not to open or maintain any bank account or investment account in the name of Brokerage, and (3) not to endorse for collection or deposit in Agent's personal account any check, money order or other negotiable instrument made payable to Brokerage.

III. Compensation

A. For so long as Agent's association with the Brokerage continues, all income earned from Agent's real estate sales activities will be accounted for and disbursed through the Brokerage in accordance with Brokerage's Policies and Guidelines.

B. Brokerage will share the commissions earned on real estate transactions in which the Agent represents client as buyer or seller in accordance with the commission splitting and capping policies that Brokerage offers generally to licensed sales associate. Brokerage's current commission splitting and capping policies are described in Commission Agreement to this Agreement. The Agent acknowledges that Brokerage retains sole discretion to change these policies and may do so from time to time. Agent's compensation will be payable only from closed transactions, and the Agent may not draw or borrow against any compensation payment.

C. Agent will be solely responsible for paying the cost of his or her own (1) real estate license fees and occupational taxes, (2) fees assessed by OneKey Multiple Listing Service for failure to comply with submission requirements (e.g., photo submission late fees, etc.), (3) insurance, including errors and omission liability insurance ("E&O Insurance"). (4) transportation, (5)

business cards, yard signs, brochures and other marketing materials, (6) property and personal advertising and marketing, (7) entertainment costs, club dues and other expenses incident to the conduct of his/her services as an Agent, and (8) any fees, costs, including attorney fees associated with any defense of or prosecution of any arbitration or litigation matter that is not covered by the office errors and omissions liability insurance as stated in section 5 below.

D. Agent agrees that if Agent does not pay required fees in full when due, Licensee may deduct any unpaid amount from Agent's commissions.

IV. Taxation Policy

You are encouraged to obtain your own tax advice regarding your compensation from the Brokerage. You agree that the Brokerage does not have a duty to design its compensation policies in a manner that minimizes your tax liabilities and you will not make any claim against the Brokerage or its management related to tax liabilities arising from your compensation.

It is expressly understood between the Brokerage and Agent that Brokerage will not:

- 1) withhold FICA (Social Security and Medicare taxes) from Agent's payments or make FICA (Social Security and Medicare taxes) payments on Agent's behalf
- 2) make State or Federal unemployment compensation contributions on Agent's behalf, or
- 3) withhold State or Federal income tax from Agent's payments.

Agent shall pay all taxes incurred while performing services under this Agreement—including all applicable income taxes and, if Agent is not a corporation, self-employment (Social Security) taxes. Upon demand, Agent shall provide Brokerage with proof that such payments have been made.

V. Intellectual Property

A) Limited License. For as long as Agent's association with the Brokerage continues, Agent has permission to use the HOMIX name and logo on his or her yard signs, business cards, letterhead and other business forms, subject to Brokerage's advance approval of the artwork and text. When Agent's association with the Brokerage terminates, his or her permission to use the HOMIX name and logo will unconditionally cease, and Agent must immediately destroy all business forms that associate Agent with the HOMIX organization and must comply with Brokerage's guidelines and procedures regarding website abandonment or revisions. If, with Broker's permission, the Agent has used any variation of the HOMIX name or initials in a domain name, Agent will immediately transfer registration of the domain name to Brokerage without compensation.

B. The Parties agree that all work product, information or other materials created and developed by Agent in connection with the performance of the services under this Agreement and any resulting intellectual property rights (collectively, the "Work Product") are the sole and exclusive property of HOMIX Realty Inc. The Parties acknowledge that the Work Product shall, to the extent permitted by law, be considered a "work made for hire" within the definition of Section 101 of the

Copyright Act of 1976, as amended, (the "Copyright Act") and that the Brokerage is deemed to be the author and is the owner of all copyright and all other rights therein. If the work product is not deemed to be a "work made for hire" under the Copyright Act, then Agent hereby assigns to the Brokerage all of Agent's rights, title and interest in and to the Work Product, including but not limited to all copyrights, publishing rights and rights to use, reproduce and otherwise exploit the Work Product in any and all formats, media, or all channels, whether now known or hereafter created

VI. Worker's Compensation and Unemployment Compensation

Brokerage shall not obtain workers' compensation insurance on behalf of Agent or Agent's employees. If Agent hires employees to perform any work under this Agreement, Agent will cover them with workers' compensation insurance to the extent required by law and provide Brokerage with a certificate of workers' compensation insurance before the employees begin the work.

Brokerage shall make no state or federal unemployment compensation payments on behalf of the Agent or Agent's employees or contract personnel. Agent will not be entitled to these benefits in connection with work performed under this Agreement.

VII. E&O Liability Insurance; Indemnification

A. Agent agrees to obtain and pay for E&O Insurance covering errors and omissions incident to the professional services a real estate sales associate customarily provides. Agent will arrange for Brokerage to be named as an additional insured in Agent's E&O Insurance policy and to require the insurer to provide Brokerage not less than 30 days' notice of the policy's cancellation or non-renewal. Note that the Brokerage may, at its discretion, secure E&O and other business insurance and require Agent to reimburse Brokerage for the costs associated with such insurance.

B. For the purpose of Sections 5.C and 5.D, "Liability" means all liability, claims, damages, losses, costs and expenses that a party sustains or incurs as a result of or in connection with a particular incident or situation, including attorney fees.

C. If and to the extent Agent fails to protect Brokerage against risks customarily covered by E&O insurance, Agent agrees to indemnify and hold Brokerage harmless from and against all Liability that Brokerage incurs or suffers on account of Agent's intentional disregard or breach of any law, regulation or standard of conduct that applies to Agent's actions or activities as a licensed real estate sales associate.

D. For risks not customarily covered by E&O insurance and for Liability arising from Agent's negligent (unintentional) disregard or breach of any law, regulation or standard of conduct that applies to Agent's actions or activities as a licensed real estate sales associate, Agent agrees to indemnify and hold Brokerage harmless from and against that percentage of any Liability that equals the percentage of commissions payable to Agent on the date the incident or omission that gave rise to the Liability occurred.

E. For all provisions hereunder, Agent shall be responsible for that portion of the legal fees and costs associated with any disciplinary actions commenced to enforce or defend provisions of this Independent Contractor Agreement, the policies and guidelines of the Brokerage or lawsuit, arbitration or mediation case commenced by other realtors against Agent and Brokerage.

F. For risks not customarily covered by E&O insurance and for Liability arising from Agent's negligent (unintentional) disregard or breach of any law, regulation or standard of conduct that applies to Agent's actions or activities as a licensed real estate sales associate, Agent agrees to indemnify and hold Brokerage harmless from and against that percentage of any Liability that equals the percentage of commissions payable to Agent on the date the incident or omission that gave rise to the Liability occurred.

G. For all provisions hereunder, Agent shall be responsible for that portion of the legal fees and costs associated with any disciplinary actions commenced to enforce or defend provisions of this Independent Contractor Agreement, the policies and guidelines of the Brokerage or lawsuit, arbitration or mediation case commenced by other realtors against Agent and Brokerage.

VIII. Restrictive Covenants and Confidential Information

A. Notwithstanding the terms of this Agreement. Agent shall be subject to the restrictive covenants and terms regarding Confidential Information of any Non-Disclosure Agreement or Influencer Agreement or other agreement with the Brokerage, or any standard procedures regarding restrictive covenants and confidential information set forth in the Brokerage's policies, procedures and other documents.

B. Brokerage recognizes and agrees that all customer names and profiles that Agent possesses at the relationship's inception or personally develops during the time Agent is associated with the Brokerage (collectively, "Agent's Data") constitute valuable business assets of Agent that are entitled to protection as confidential information. Brokerage promises that it will not, during the time of Agent's association with the Brokerage or at any later time, attempt to obtain or exploit Agent's Data and will not attempt to stop Agent from taking his or her Agent's Data when his or her relationship with the Brokerage ends.

C. Agent recognizes that the Brokerage and other agents have spent substantial time, effort, and money to develop the Brokerage's customer base and agent team. Except for Agent's Data, which is not covered by this Section, the names and profiles of customers who have bought or sold real estate through the Brokerage and of agents who are associated with the Brokerage constitute valuable business assets of Brokerage or other agents that are entitled to protection as confidential information. Agent promises that he or she will not, during the time of Agent's association with the Brokerage or at any later time, divulge, sell, exchange or distribute to any person except Brokerage, other agents associated with the Brokerage. Further, Agent promises not to contact any such customer or agent or to use any such profiles except in connection with the business of the Brokerage.

D. Agent promises that he or she will not, during the time of Agent's association with the Brokerage or at any later time, disclose, divulge, reveal, report or use Brokerage's commission

splitting and capping policies and all resources provided by Brokerage including but not limited to all job training related documents, videos, links, etc.

IX. Term and Termination

A. Agent's association with the Brokerage will continue for an indefinite period. Either Agent or Brokerage may terminate Agent's association with the Brokerage at any time, with or without cause or prior notice.

B. Termination of Agent's association with the Brokerage will not terminate any of the continuing rights or obligations of either Agent or Brokerage under this Agreement, particularly the covenants in Section 8.

C. When Agent's association with the Brokerage terminates for any reason, Brokerage will release and allow Agent to take all solo listings and buyer agency contracts that Agent was responsible for obtaining. If Agent shares listings or agency contracts with other agents in the Brokerage, the listings or agency contracts will remain with the Brokerage, but Agent will receive his or her full share of the related commission when a sale of the property closes.

D. After Agent's association with the Brokerage terminates, Brokerage will continue to pay Agent's commissions on closed transactions in accordance with the commission splitting/capping policies that applied on the date of Agent's termination.

E. If Agent owes Brokerage any fees or other amounts at the time Agent's association with the Brokerage terminates, or if any amounts become due after termination, Agent authorizes Brokerage to deduct the amount due from any commissions or other amounts due Agent until Agent's account with Brokerage has been fully paid.

X. Representations of Agent and Brokerage

A. Agent represents to Brokerage that:

1) Agent is duly licensed as a real estate broker or salesperson (a "Real Estate Professional") in the state of New York and that Agent is currently authorized to act as a Real Estate Professional in New York.

2) Agent is not now, has not been within the last five years, a defendant in any lawsuit alleging professional misconduct or violation of any deceptive trade practices/consumer protection law, nor is Agent currently subject to an investigation by a real estate commission or comparable oversight body.

3) Agent expressly represents and warrants that Agent is free to associate with the Brokerage and that Agent is not bound by a promise or commitment to any other real estate company, agency, association, firm, person or corporation that prohibits or prevents Agent from associating with the Brokerage.

4) The Brokerage has never represented that Agent can earn a living selling residential real estate, whether working part-time or full-time. Agent recognizes that the predominant method of earning income in the brokerage is through the

sale of real estate, and that any recruiting-based income an agent may earn is purely supplemental.

B. The Brokerage represents to Agent that the Brokerage's principal is duly licensed as a real estate broker in the State of New York.

XI. Rules Regarding Rentals

A. Negotiating Leases - Agent understands that preparing and negotiating leases on behalf of a Landlord or Tenant can result in the unauthorized practice of law by the Agent. Company understands that in our industry it is customary for Agents to prepare leases on behalf of Landlord by using pre-made standardized lease forms. Effective immediately, any Agent that is involved in a rental must have the form called "Attorney Review Clause" signed by both Landlord and Tenant. This form has all parties acknowledge that they have the option to have the lease reviewed by an attorney of their choice. A failure of either the Landlord or Tenant to do that would make the version of the lease executed by the parties binding. This is now a Company requirement to prevent any unnecessary litigation, complaints, etc., due to the actions of an Agent who inadvertently or negligently gives advice that should be given by an attorney.

B. Commissions - All rentals count toward the Company dollar and Agent is responsible for bringing to the office any commissions received on rentals within 24 hours of signing. No commissions will be paid to Agent until such time as Company has a copy of the lease and confirms that all required forms are received by the Brokerage and approved for compliance. Commissions will also not be paid until such time as it is confirmed that the Tenant actually received possession of the premises.

C. Agent Solely Responsible for Cancelled Transactions - In the event that a rental transaction that has closed in compliance with the requirements set forth by the Company and Company has to reimburse Tenant/Landlord or any other party for commissions and any other monies paid and disbursed by Company, Agent shall be responsible for any loss incurred by Company.

XII. Advertising Guideline Compliance

A. NY DOS Advertising guidelines - Agent has been advised that as of January 2, 2014 NY DOS has changed its advertising guidelines and any failure on agents part to comply with such new advertising guidelines shall subject Agent to potential fines from NY DOS. Agent hereby agrees to comply with all rules, regulations, and laws hereby enacted and as amended from time to time from NY DOS and hold the Brokerage harmless from any claim, fine, cost, fees, including attorney fees that may be associated with such violation.

B. Agent agrees to ensure that any images, content, advertisement used by Agent on websites, newspapers, magazines, business cards etc, is used with permission and with proper licenses. It shall be Agents sole responsibility to ensure that said advertisements and use of images and content does not violate both NY DOS laws and copyright.

XIII. Notices

All notices and other communications in connection with this Agreement shall be in writing and shall be considered adequately given as follows:

- 1) when delivered personally to the recipient's address as stated on this Agreement
- 2) three days after being deposited in the United States mail, with postage prepaid to the recipient's address as stated on this Agreement, or
- 3) when sent by fax or email to the last fax number or email address of the recipient known to the person giving notice.

XIV. Confidentiality

The parties mutually recognize that, in the course of Agent's association with Brokerage, agent will have access to and will acquire knowledge of confidential and proprietary Brokerage information. This information includes, without limitation: marketing and strategies; customer names, needs, and other information; client potential; and other types of information which would place company at a competitive disadvantage if known by or revealed to competitors or customers. The parties mutually recognize that, in the course of your employment with company, in addition to Brokerage information, you will receive special assistance in marketing and special training which is not generally available elsewhere and which could harm Brokerage is known by her revealed to its competitors or customers. Accordingly, you agree:

- 1) You will never disclose to any person or entity any of Brokerage's confidential information or its confidential marketing and training programs.
- 2) You will not disclose to any person or entity about this Agreement or your commission rate with the Brokerage.

B. Agent acknowledges that use or disclosure of any Confidential Information in a manner inconsistent with this Agreement will give rise to irreparable injury for which damages would not be an adequate remedy. Accordingly, in addition to any other legal remedies which may be available at law or in equity, Brokerage shall be entitled to equitable or injunctive relief against the unauthorized use or disclosure of Confidential Information. The Brokerage shall be entitled to pursue any other legally permissible remedy available as a result of such breach, including but not limited to, damages, both direct and consequential. In any action brought by the Brokerage under this Section, the Brokerage shall be entitled to recover its attorney's fees and costs from the Agent.

C. Notwithstanding the foregoing and any other provisions of this Agreement. Agent shall be subject to the terms regarding Confidentiality in any Non-Disclosure Agreement or Influencer Agreement or other agreement with the Brokerage, or any standard procedures regarding restrictive covenants and confidential information set forth in the Brokerage's policies, procedures and other documents.

XV. Miscellaneous

A. This Agreement, including Schedule 1 and any Policies and Guidelines that Brokerage issues, constitutes the entire agreement and understanding between the parties and supersedes any prior agreement or understanding relating to the subject matter of this Agreement. This Agreement

shall cover all incidents that result in Company having to incur and fees and penalties as discussed herein, even if the incident occurred prior to the signing of this Agreement. No change, amendment or waiver of any provision of this

Agreement will be binding unless in writing and signed by both Agent and Brokerage and same shall be amended by time to time. Company reserves the right to amend the Agreement along with the Policies and Guidelines to comply with any rules, laws or regulations and to protect the interest of Company. By signing this Agreement Agent agrees to comply with signing of any such amendment.

B. This Agreement will be governed by the laws of the State of New York.

C. If any provision of this Agreement is found to be void or unenforceable by any court or arbitration panel, the finding will have no effect on any other provision of this Agreement, and all other provisions will remain in full force and effect.

Brokerage Signature

Agent Signature

Printed Name/Title

Printed Name

Date

Date



NON-DISCLOSURE AGREEMENT

This Confidentiality and Non-Disclosure Agreement (the "Agreement") is entered into by and between the undersigned individual ("Recipient") and HOMIX LIVING INC. ("Owner") as of the date of signing (the "Effective Date").

The purpose of this Agreement is to protect all confidential, proprietary, and sensitive information of the Owner, including but not limited to internal training content, media, customer data, communications, and technology assets.

FOR GOOD CONSIDERATION, and in consideration of Recipient's receiving confidential information from the Owner (as defined herein), Recipient hereby agrees and acknowledges:

I. **CONFIDENTIAL INFORMATION.** The term "Confidential Information" means any information or material which is proprietary to the Owner, whether or not owned or developed by the Owner, which is not generally known other than by the Owner, and which the Recipient may obtain through any direct or indirect contact with the Owner. Regardless of whether specifically identified as confidential or proprietary, Confidential Information shall include any information provided by the Owner concerning the business, technology and information of the Owner and any third party with which the Owner deals, including, without limitation, business records and plans, trade secrets, technical data, product ideas, contracts, financial information, pricing structure, discounts, computer programs and listings, source code and/or object code, copyrights and intellectual property, inventions, sales leads, strategic alliances, partners, and customer and client lists. The nature of the information and the manner of disclosure are such that a reasonable person would understand it to be confidential. For purposes of this Agreement, references to the "Owner" shall include not only HOMIX LIVING INC. but also its parent companies, subsidiaries, affiliates, and any other related entities, whether existing now or formed in the future. Confidential Information disclosed on behalf of such entities shall be subject to the same protections under this Agreement. All training-related content, including videos, PowerPoint presentations, written guides, and live sessions, are deemed confidential trade secrets. Any distribution, sharing, repackaging, or repurposing of training materials for personal or external use is strictly prohibited and constitutes a material breach of this Agreement.

A. **"Confidential Information"** includes but not limited to:

- client information, contact details, transaction records, pricing strategies
- internal procedures, business strategies, standard operating procedures, handbooks, organizational structure
- training materials in the form of videos, presentations (PPTs), documents
- project data, financial records, internal communications

- any data stored or accessed through company devices or platforms
- the confidentiality of such information applies regardless of whether it is marked 'Confidential' or not.
- disclosed in written, oral, or electronic format
- all access credentials and usage details for company platforms and tools including Customer Relationship Management systems, Google Drive folders, Dropbox Folders, third party workspace assistants, etc.
- personal matters and private information of the Owner, Owner's family members, employees, clients, and affiliates, including but not limited to personal life details, family information, and any non-business-related communications

B. **"Confidential Information"** does not include:

- matters of public knowledge that result from disclosure by the Owner;
- information rightfully received by the Recipient from a third party without a duty of confidentiality;
- information independently developed by the Recipient;
- information disclosed by operation of law;

II. **Scope and Retroactive Application.** This Agreement applies to all confidential information disclosed by the Owner to the Recipient, whether disclosed prior to or after the date of this Agreement, including but not limited to any information disclosed since the Recipient's start date of engagement. The Owner reserves the right to investigate and pursue remedies for any breach that occurred before the signing of this Agreement.

III. **PROTECTION OF CONFIDENTIAL INFORMATION.** The Recipient understands and acknowledges that the Confidential Information has been developed or obtained by the Owner by the investment of significant time, effort, and expense, and that the Confidential Information is a valuable, special, and unique asset of the Owner, which provides the Owner with a significant competitive advantage. Therefore, it needs to be protected from improper disclosure. In consideration for the receipt by the Recipient of the Confidential Information, the Recipient agrees as follows:

A. **No Disclosure.** The Recipient will hold the Confidential Information in confidence and shall not disclose Confidential Information to any third party, including competitors, clients, vendors, or freelancers. The Recipient shall maintain all reasonable physical, technical, and administrative safeguards to protect information from unauthorized access, especially while working remotely.

B. **No Copying/Modifying/Redistributing.** The Recipient will not copy or modify any confidential information without the prior written consent of the Owner. The recipient

shall not retain copies of confidential information, whether in digital, paper, or any other form, after termination or upon request for return. The Recipient will not reproduce, record, forward, republish, or repackage any confidential information. The Recipient shall not save, screenshot, screen-record, or redistribute any training or internal materials, and share any such information with others, even for personal or educational purposes. Even for personal learning purposes, saving, recording, or sharing any confidential training materials is prohibited.

C. **Unauthorized Use.** The Recipient shall promptly advise the Owner if the Recipient becomes aware of any possible unauthorized disclosure or use of Confidential Information.

D. **Application to Employees and Contractors.** The Recipient shall not disclose any Confidential Information to any employees or contractors of the Recipient, except those employees and contractors who are required to have the Confidential Information in order to perform their job duties in connection with the limited purposes of this Agreement. Each permitted employee or contractor to whom Confidential Information is disclosed shall sign a non-disclosure agreement substantially the same as this Agreement at the request of the Owner.

E. **Use of Personal and Company Devices.** The Recipient agrees to protect all devices, including personal devices, that may access confidential Information. The Recipients shall not access any personal, non-work-related information, including but not limited to private photographs, communications, or other personal data stored on company devices without the explicit permission of the Owner.

IV. **UNAUTHORIZED DISCLOSURE OF INFORMATION - INJUNCTION.** If it appears that the Recipient has disclosed (or has threatened to disclose) Confidential Information in violation of this Agreement, the Owner shall be entitled to an injunction to restrain the Recipient from disclosing the Confidential Information in whole or in part. The Owner shall not be prohibited by this provision from pursuing other remedies, including a claim for losses and damages.

V. **NON-CIRCUMVENTION.** For a period of Five (5) years after the end of the term of this Agreement, the Recipient will not attempt to do business with, or otherwise solicit any business contacts found or otherwise referred by Owner to Recipient for the purpose of circumventing, the result of which shall be to prevent the Owner from realizing or recognizing a profit, fees, or otherwise, without the specific written approval of the Owner. If such circumvention occurs, the Owner shall be entitled to any commissions due pursuant to this Agreement or relating to such transaction.

VI. RETURN OF CONFIDENTIAL INFORMATION. Upon the written request of the Owner, or in the event of the termination of engagement with the Owner, the Recipient shall return to the Owner all written materials containing the Confidential Information. The Recipient shall also deliver to the Owner written statements signed by the Recipient certifying that all materials have been returned within three (3) days of receipt of the request or termination of engagement.

VII. ACCOUNT & DIGITAL ACCESS RETURN. Upon termination of engagement, Recipient shall immediately return and relinquish access to all company accounts, systems, software, and cloud storage used in connection with the Company's business.

VIII. RELATIONSHIP OF PARTIES. Neither party has an obligation under this Agreement to purchase any service or item from the other party or commercially offer any products using or incorporating the confidential information. This Agreement does not create any agency, partnership, or joint venture.

IX. NO WARRANTY. The Recipient acknowledges and agrees that confidential information is provided on an "AS IS" basis. THE OWNER MAKES NO WARRANTIES, EXPRESS OR IMPLIED, WITH RESPECT TO THE CONFIDENTIAL INFORMATION AND HEREBY EXPRESSLY DISCLAIMS ANY AND ALL IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE. IN NO EVENT SHALL THE OWNER BE LIABLE FOR ANY DIRECT, INDIRECT, SPECIAL, OR CONSEQUENTIAL DAMAGES IN CONNECTION WITH OR ARISING OUT OF THE PERFORMANCE OR USE OF ANY PORTION OF THE CONFIDENTIAL INFORMATION. The Owner does not represent or warrant that any product or business plans disclosed to the Recipient will be marketed or carried out as disclosed, or at all. Any actions taken by the Recipient in response to the disclosure of the Confidential Information shall be solely at the risk of the Recipient.

X. LIMITED LICENSE TO USE. The Recipient shall not acquire any intellectual property rights under this Agreement except the limited right to use as set forth above. The Recipient acknowledges that, as between the Owner and the Recipient, the Confidential Information and all related copyrights and other intellectual property rights, are (and at all times will be) the property of the Owner, even if suggestions, comments, and/or ideas made by the Recipients are incorporated into the Confidential Information or related materials during the period of this Agreement

XI. INDEMNITY. Each party agrees to defend, indemnify, and hold harmless the other party and its officers, directors, agents, affiliates, distributors, representatives, and employees from any and all third-party claims, demands, liabilities, costs, and expenses, including reasonable attorney's fees, costs, and expenses resulting from the indemnifying party's material breach of any duty, representation, or warranty under this Agreement.

XII. ATTORNEY'S FEES. In any legal action between the parties concerning this Agreement, the prevailing party shall be entitled to recover all attorney's fees and costs.

XIII. TERM. The obligations of this Agreement shall survive for the duration of the engagement, and one year thereafter from the Effective Date or until the Owner sends the Recipient written notice releasing the Recipient from this Agreement. The duty to maintain confidentiality shall extend for a minimum of Five (5) years from the termination date or until the confidential information becomes publicly known without any breach of this Agreement.

XIV. GENERAL PROVISIONS. This Agreement sets forth the entire understanding of the parties regarding confidentiality. Any amendments must be in writing and signed by both parties. This Agreement shall be construed under the laws of the State of New York. This Agreement shall not be assignable by either party. Neither party may delegate its duties under this Agreement without the prior written consent of the other party. The confidentiality provisions of this Agreement shall remain in full force and effect at all times in accordance with the term of this Agreement. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining portions of this Agreement shall remain in full force and effect and construed so as to best effectuate the original intent and purpose of this Agreement.

XV. WHISTLEBLOWER PROTECTION. This Agreement is in compliance with the Defend Trade Secrets Act and provides civil or criminal immunity to any individual for the disclosure of trade secrets: (i) made in confidence to a federal, state, or local government official, or to an attorney when the disclosure is to report suspected violations of the law; or (ii) in a complaint or other document filed in a lawsuit if made under seal.

XVI. USE OF PERSONAL DEVICES. The Recipient agrees that the use of personal devices, including but not limited to smartphones or tablets, for accessing or storing confidential information is strictly prohibited unless authorized by the Owner in writing. If such devices are used, the Recipient must ensure that they are securely protected and that no unauthorized third-party access is possible.

XVII. RESTRICTION ON DISCLOSURE OF WORK EXPERIENCE DETAILS.

Recipient agrees not to disclose specifics of their work at the Company, including but not limited to client identities, transaction details, or project involvement, without the Company's prior written consent.

XVIII. REMOTE WORK CONFIDENTIALITY CLAUSE. Recipient agrees to ensure the confidentiality and security of all Company materials and information while working remotely, including maintaining secure physical and digital work environments.

XIX. NON_SOLICITATION CLAUSE. For a period of three (3) years following the

termination of their engagement, Recipient shall not solicit, recruit, or encourage any employee, agent, contractor, or client of the Company to terminate their relationship or engagement with the Company.

XX. **LIQUIDATED DAMAGES.** In the event of a breach of this Agreement, Recipient agrees to pay the Owner liquidated damages of **\$100,000 per breach** of any major Confidential Document as a reasonable estimate of damages (not a penalty), **\$10,000 minimum** for any lesser but material breach. Recipient further agrees to compensate the Company for any costs incurred due to the breach, including but not limited to attorney fees, investigation expenses, and legal filing costs.

XXI. **Governing Law & Jurisdiction.** This Agreement is governed by the laws of the State of New York, and any disputes shall be exclusively resolved in courts located in New York County, New York.

XXII. **Severability.** If any term or provision of this Agreement is invalid, illegal, or unenforceable in any jurisdiction, such invalidity, illegality, or unenforceability shall not affect any other term or provision of this Agreement or invalidate or render unenforceable such term or provision in any other jurisdiction Upon a determination that any term or provision is invalid, illegal, or unenforceable, the parties hereto shall negotiate in good faith to/the court may modify this Agreement to effect the original intent of the parties as closely as possible in order that the transactions contemplated hereby be consummated as originally contemplated to the greatest extent possible.

XXIII. **Use Limitation Clause.** Confidential materials may only be accessed and used for internal business purposes. The Recipient is prohibited from duplicating, distributing, or transferring confidential content to any third party or using such materials in any capacity outside their designated duties, even with non-commercial intent.

XXIV. **SIGNATORIES.** This Agreement shall be executed by Si Zhang, Broker, 1 behalf of HOMIX LIVING INC. and delivered in the manner prescribed by law as of the date first written above.

_____ Authorized Company Signature	_____ Recipient Signature
_____ Name/Title	_____ Name
_____ Date	_____ Date